

Watermark Brief — The G-cubed Brand Watermark

Watermark Brief — The “G³” Brand Watermark

*Prepared for the owner and trademark counsel as part of the Trademarks packet. It explains what the brand watermark is, its trademark status, and what (if anything) needs to be filed for it. **Not legal advice** — registrability and the filing are counsel's to determine. Current as of 2026-09-07.*

1. What the watermark is

The brand watermark is the **“G³” (G-cubed) logo mark** applied as a **semi-transparent overlay behind every ad and AI-generated creative** the platform serves or posts, alongside the website-link bar (“getgoodsgratis.com”). It is stamped by the house-branding layer (`ad-branding.ts` / `BrandedAd.jsx`) on creatives across **all three advertiser tiers**, so that any creative — whoever’s product it advertises — is recognizable as coming from Get Goods Gratis. It also appears inside the **house-ad brand template** (see that drawing in this brief).

2. The watermark is the “G³” design mark



The “G³” mark used as the brand watermark — black-and-white USPTO drawing

This is the same USPTO-compliant black-and-white drawing filed for the logo (grayscale, 250–944 px, 350 DPI, under 5 MB). Source: `Black and White Images/GGG-mark-BW-USPTO-900px-350dpi.jpg`.

The key point: the watermark is **not a separate mark**. It is the **“G³” logo design mark** (row 2 of the `TRADEMARK-FILING-BRIEF`) used in a particular way — placed behind the ad content at reduced opacity. Filing the **G³ logo as a design mark** — which is already the plan — **protects the watermark**. The opacity, size, and placement are *usage* choices; they do not create a new or different mark, so there is nothing separate to register for the watermark itself.

3. Why the watermark still matters for trademark

Even though it needs no separate filing, the watermark does real trademark work:

- **It is a strong specimen of use.** The G³ mark applied consistently across every served/posted creative is clear evidence the mark is **used in commerce as a source identifier** — exactly what a use-based filing (or the Statement of Use after an Intent-to-Use) needs.
- **It anchors the house-ad template trade dress.** The watermark + the website-link bar + the frame are the consistent branded “shell” that the TRADEMARK-FILING-BRIEF flags as a **trade-dress / design-mark** candidate. The watermark is the central brand element of that look.
- **Consistent use builds distinctiveness.** Stamping the same unaltered mark on everything strengthens both the logo registration and any trade-dress claim over time.

4. Do you need to separately trademark the watermark?

No — a separate registration is not needed, because the watermark is the G³ design mark. Recommended posture (for counsel to confirm):

- **File the “G³” logo as a design mark** (already in the brief) — this is what protects the watermark.
- Use ™ on the mark (including its watermark use) now to assert common-law rights; move to ® only after the logo registration issues.
- Only consider a **separate filing** if the watermark ever **diverges** from the logo (a different symbol, added wording, a distinct stylization). As long as it is the same “G³” mark, one filing covers both uses.

5. Usage notes to keep the protection strong

- **Keep the watermark the unaltered “G³” mark** — don’t distort, recolor into a claimed color, or add elements; a consistent mark is what stays a recognizable source identifier.
- Opacity and placement can vary for legibility; that is fine and does not change the mark.
- Because the mark is human-designed (not AI-generated), it is a genuine, protectable mark — unlike the per-advertiser AI creatives it sits on top of, which are not your marks and are outside copyright.

6. Cross-references

- TRADEMARK-FILING-BRIEF.md — the marks table (row 2 = the “G³” logo design mark) and the “Recurring brand elements worth filing” section.
- Black and White Images/GGG-mark-BW-USPTO-900px-350dpi.jpg — the filing drawing (the mark = the watermark).
- Black and White Images/GGG-house-ad-template-BW-USPTO.jpg — the house-ad template that shows the watermark in context.
- BRAND-AND-TRADEMARK.md — the brand reference.

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